THE DEKKHAN AGRICULTURISTS' RELIEF ACT, 1879

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title.
   Commencement.
   Local Extant.
2. [*Repealed.*].
3. [*Repealed.*].
4. [*Repealed.*].
5. [*Repealed.*].
6. [*Repealed.*].
7. [*Repealed.*].
8. [*Repealed.*].
9. [*Repealed.*].
10. [*Repealed.*].
11. Agriculturists to be sued where they reside.
12. [*Repealed.*].
13. [*Repealed.*].
14. [*Repealed.*].
15. [*Repealed.*].
16. [*Repealed.*].
17. [*Repealed.*].
18. [*Repealed.*].
19. [*Repealed.*].
20. [*Repealed.*].
21. [*Repealed.*].
22. [*Repealed.*].
23. [*Repealed.*].
24. [*Repealed.*].
25. [*Repealed.*].
26. [*Repealed.*].
27. [*Repealed.*].
28. [*Repealed.*].
29. [*Repealed.*].
30. [*Repealed.*].

IndiaCode

31. [*Repealed.*].
32. [*Repealed.*].
33. [*Repealed.*].
34. [*Repealed.*].
35. [*Repealed.*].
36. [*Repealed.*].
37. [*Repealed.*].
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51. [*Repealed.*].
52. [*Repealed.*]
53. [*Repealed.*].
54. [*Repealed.*].
55. [*Repealed.*].
56. Instruments executed by agriculturist not to be deemed valid unless executed before a Village-registrar.
57. [*Repealed.*].
58. [*Repealed.*].
59. [*Repealed.*].
60. Registration under this Act to be deemed equivalent to registration under Indian Registration Act, 1877.
61. [*Repealed.*].
62. Exemption of instruments to which the Government or any officer of the Government is a party.

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THE DEKKHAN AGRICULTURISTS' RELIEF ACT, 1879

ACT NO. 17 OF 1879

[29*th*, *October*, 1879.]

An Act for the relief of Indebted Agriculturists in certain parts of the Dekkhan.

Preamble.—WHEREAS it is expedient to relieve the agricultural classes in certain parts of the Dekkhan from indebtedness; It is hereby enacted as follows:—

1. Short title.—This Act may be cited as the [1]Dekkhan Agriculturists' Relief Act, 1879: and

Commencement.—it shall come into force on the first day of November, 1879.

Local extent.—[2][This section and] sections 11, 56, 60 and 62 extend to [3][the whole of India except [4][the territories which, immediately before the 1st November, 1956, were comprised in Part B States]]. The rest of this Act [5]extends only to the districts of Poona, Satara, Sholapur and Ahmednagar [6][but may, from time to time, be extended wholly or in part by the State Government [7]*** to any other district or districts in the [8][territories which, immediately before the 1st November, 1956, were comprised in the State of Bombay,]] [9][or to any part or parts of any other such district or districts].

IndiaCode

* * *

2. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*

1. Acts 17 of 1879, 23 of 1881 and 22 of 1882 may be cited collectively as the Dekkhan Agriculturists' Relief Acts, 1879 to 1882—*see* s. 1(1) of the Dekkhan Agriculturists' Relief Act, 1882 (22 of 1882). The Acts of 1879 to 1882 and Act 23 of 1886 may be cited collectively as the Dekkhan Agriculturists' Relief Acts, 1879 to 1886—*see* s. 1(*1*) of the Dekkhan Agriculturists' Relief Act, 1886 (23 of 1886). The Acts of 1879 to 1886 and Act 6 of 1895 may be cited collectively as the Dekkhan Agriculturists' Relief Acts, 1879 to 1895—*see* s. 1(*1*) of the Dekkhan Agriculturists' Relief Act, 1895 (6 of 1895). The Acts of 1879 to 1895 and Bom. Act 1 of 1902 may be cited collectively as the Dekkhan Agriculturists' Relief Acts, 1876 to 1902—*see* s. 1(1) of the Dekkhan Agriculturists' Relief Act, 1902 (Bom. 1 of 1902).
2. These words were *inserted* by Act 23 of 1881, Section 3, and are to be deemed to have always been *inserted*.
3. Subs. by the A.O. 1950, for "all the Provinces of India".
4. Subs by the A.L.O., 1956 for "Part B States".
5. The Act was *repealed* in the State of Bombay, with effect from 27-5-1950 by the Bombay Agricultural Debtors' Relief Act, 1947 Bom. 28 of 1947), s. 56 as amended. Hence the part applicable to that State only has not been reproduced.
6. Ins. by Act 23 of 1886, s. 3.
7. The words "with the previous sanction of the G.G. in C." *rep.* by Act 38 of 1920, s. 2 and Schedule I.
8. Subs. by 2 A.L.O., 1956 , for "State of Bombay" (w.e.f. 1-11-1956).
9. Ins. by Act 23 of 1886, s. 3.

3. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

4. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

5. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

6. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

7. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced*.]

8. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

9. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

10. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

11. Agriculturists to be sued where they reside.—Every suit of the description mentioned in Section 3, clause (*w*)[1], may, if the defendant, or, when there are several defendants, one only of such defendants, is an agriculturist, be instituted and tried in a Court within the local limits of whose jurisdiction such defendant resides, and not elsewhere.

1. Reproduced below:—
"(*w*) suits for the recovery of money alleged to be due to the plaintiff—
on account of money lent or advanced to, or paid for, the defendant, or as the price of goods sold, or
on an account stated between the plaintiff and defendant, or
on a written or unwritten engagement for the payment of money not hereinbefore provided for;".

India Code

Every such suit in which there are several defendants who are agriculturists may be instituted and tried in a Court within the local limits of whose jurisdiction any one of such defendants resides, and not elsewhere.

Nothing herein contained shall affect sections 22 to 25 (both inclusive) of the [1]Code of Civil Procedure.

[* * *]

12. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

13. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

14. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

15. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

16. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

17. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

18. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

19. **Repealed**.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

20. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

1. *See* now Act 5 of 1908.

21. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

22. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced*.]

23. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

24. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*] [34][* * *]

25. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

26. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

27. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

28. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

29. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

30. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

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31. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

32. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

33. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

34. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

35. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

36. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

37. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

38. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

39. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

40. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

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41. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

42. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

43. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

44. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

45. **Repealed**.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

46. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

47. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

48. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

49. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

50. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

India Code

51. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

52. **Repealed.—** [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

53. Repealed.—[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

54. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

55. **Repealed.—**[*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act,* 1947 (*Bom.* 28 *of* 1947), *s.* 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

56. Instruments executed by agriculturist not to be deemed valid unless executed before a Village-registrar.—No instrument which purports to create, modify, transfer, evidence or extinguish an obligation for the payment of money or a charge upon any property, or to be a conveyance or lease, and which is executed after this Act comes into force by an agriculturist residing in any local area for which a Village-registrar has been appointed, shall be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive evidence, or shall be acted upon by any such person or by any public officer, unless such instrument is written by, or under the superintendence of, and is attested by, a Village-registrar:

Provided that nothing herein contained shall prevent the admission of any instrument in evidence in any criminal proceeding, [1][or apply to any instrument which is executed by an agriculturist merely as a surety,] [2][or to any instrument required by Section 17 of the [3]Indian Registration Act, 1877 (3 of 1877), to be registered under that Act.]

[* * *]

1. Ins. by Act 23 of 1881, s. 12.
2. Ins. by Act 23 of 1886, s. 9.
3. *See* now the Indian Registration Act, 1908 (16 of 1908).

57. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

58. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

59. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

60. Registration under this Act to be deemed equivalent to registration under Indian Registration Act, 1877.—Every instrument executed and registered in accordance with the foregoing provisions shall be deemed to have been duly registered under the provisions of the [1]Indian Registration Act, 1877 (3 of 1877); and no instrument which ought to have been executed before a Village-registrar but has been otherwise executed shall be registered by any officer acting under the said Act, or in any public office, or shall be authenticated by any public officer.

[* * *]

61. Repealed.— [*Rep. by the State of Bombay, with effect from the* 27th May, 1950 *by the Bombay Agricultural Debtors' Relief Act*, 1947 (*Bom*. 28 *of* 1947), *s*. 56 *was amended. Hence the part applicable to that State only has not been reproduced.*]

62. Exemption of instruments to which the Government or any officer of the Government is a party.—Nothing in this Act shall be deemed to require any instrument, to which the Government or any officer of the Government in his official capacity is a party, to be executed before a Village-registrar[2].

[* * *]

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1. *See* now the Indian Registration Act, 1908 (16 of 1908.
2. The words "or any Society registered under the Co-operative Credit Societies Act, 1904" *ins.* by Bom. Act 1 of 1910 were *rep.* by Bom. Act 1 of 1912.